Case No. 23-12884F
Case No. 23-12884

In the United States Court of Appeals
In the United States Court of Appeals
for the Eleventh Circuit
for the Eleventh Circuit

TIANA HILL
TIANA HILL
Plaintiff-Appellant,
Plaintiff-Appellant,

v.

CLAYTON COUNTY, GEORGIA, *et al.*
CLAYTON COUNTY, GEORGIA, et al,
Defendant-Appellee.
Defendant-Appellee.

Appeal from the United States District Court for the Northern District of Georgia,
Atlanta Division
Appeal from the United States District Court
for the Northern District of Georgia, Atlanta Division
Civil Action No. 1:21-CV-05300-TWT
Civil Action NO. 1:21-CV-05300-TWT

APPELLANT'S OPENING BRIEF
APPELLANT'S OPENING BRIEF

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CERTIFICATE OF INTERESTED PERSONS AND CORPORATE DISCLOSURE STATEMENT

Case No. 23-12884
Tiana Hill v. Clayton County

Certificate of Interested Persons and Corporate Disclosure Statement

Pursuant to Rule 26.1 of the Federal Rules of Appellate Procedure and Eleventh Circuit Rules 26.1-1, 26.1-2, and 26.1-3, Appellant Tiana Hill provides the following certificate of interested persons and corporate disclosure statement:

1. Hill, Tiana (Appellant)
2. Albert III & Associates, LLC (law firm for attorney representing Appellant)
3. Albert III, Mitchell L. (attorney for Appellant)
4. Clayton County (Appellee)
5. Clayton County Board of Commissioners (named as Appellee, but not a legal entity)
6. Clopton, Dr. Charles (Defendant; not involved in this appeal)
7. CorrectHealth Clayton, LLC (Defendant; not involved in this appeal)
8. Cruser, Mitchell, Novitz, Sanchez, Gaston & Zimet, LLP (law firm for attorney representing Appellee Sheriff Victor Hill)
9. Currie, Alison L. (attorney for Defendants CorrectHealth Clayton, LLC and Dr. Charles Clopton; not involved in this appeal)
10. Daly, Jacob E. (attorney for Appellee Clayton County)
11. Freeman Mathis & Gary, LLP (law firm for attorneys representing Appellee Clayton County)
12. Hancock, Jack R. (attorney for Appellee Clayton County)
13. Hill, Sheriff Victor (Appellee)

9. Gurdie, Alison L. (attorney for Defendants CorrectHealth Clayton, LLC and Dr. Charles Clopton; not involved in this appeal)

10. Daly, Jacob E. (attorney for Appellee Clayton County)

11. Freeman Mathis & Gary, LLP (law firm for attorneys representing Appellee Clayton County)

12. Hancock, Jack R. (attorney for Appellee Clayton County)

13. Hill, Sheriff Victor (Appellee)

14. Lavender III, Thomas E. (attorney for Defendants CorrectHealth Clayton, LLC and Dr. Charles Clopton; not involved in this appeal)

15. Lavender, Hoffman, Alderman, LLC (law firm for attorneys representing Defendants CorrectHealth Clayton, LLC and Dr. Charles Clopton; not involved in this appeal)

16. Sabzevari, A. Ali (attorney for Appellee Clayton County)

17. Thrash, Thomas W. (Judge of the United States District Court for the Northern District of Georgia)

18. Woodward, Karen E. (attorney for Appellee Sheriff Victor Hill)

At this time, apart from the above-named parties and entities, undersigned counsel is aware of no other person, associations, firms, partnerships, or corporations that have either a financial interest in or other interest which could be substantially affected by the outcome of this particular case.

ours p.4 (red) over filed p.4 (blue)

Statement Regarding Oral Argument

Ms. Hill's baby D.H. needlessly died. Ms. Hill suffered for months, pregnant, in the custody of Clayton County. Ms. Hill desires oral argument. At the center of this appeal is the interpretation of the wording of a confidential settlement agreement between Ms. Tiana Hill, CorrectHealth LLC and Dr. Charles Clopton. The reason that oral argument should be heard is that the issue of the understanding of the meeting of the minds of the parties who participated in the mediation is crucial in determining the true intent of the agreement. Oral argument would allow the Court the opportunity to fully explore this issue.

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Tiana Hill v. Clayton County

Fed. R. App. P. 4(a)(1)(A) 1

Certificate of Interested Persons and Corporate Disclosure Statement

Pursuant to Rule 26.1 of the Federal Rules of Appellate Procedure and Eleventh Circuit Rules 26.1-1, 26.1-2, and 26.1-3, Appellant Tiana Hill provides the following certificate of interested persons and corporate disclosure statement:

Tiana Hill is aware of the following trial judge(s), attorneys, persons, associates of persons, firms, partnerships, and corporations that have an interest in the outcome of this appeal:

1. Hill, Tiana (Appellant)
2. Albert III & Associates, LLC (law firm for attorney representing Appellant)
3. Albert III, Mitchell L. (attorney for Appellant)
4. Clayton County (Appellee)
5. Clayton County Board of Commissioners (named as Appellee, but not a legal entity)
6. Clopton, Dr. Charles (Defendant; not involved in this appeal)
7. CorrectHealth Clayton, LLC (Defendant; not involved in this appeal)
8. Cruser, Mitchell, Novitz, Sanchez, Gaston & Zimet, LLP (law firm for attorney representing Appellee Sheriff Victor Hill)

enforcing a settlement agreement pursuant to 28 U.S.C. § 1291. That question was settled in our Circuit long ago. *See Mass. Cas. Ins. Co. v. Forman*, 469 F.2d 259, 260 (5th Cir. 1972) (holding that an order enforcing a settlement agreement where material facts are not in dispute was "in practical effect" a "final judgment within the meaning of § 1291…"

STATEMENT REGARDING ADOPTION

Ms. Hill does not make any adoptions.

JURISDICTIONAL STATEMENT

Ms. Hill's claims arise under 42 U.S.C. §§ 1983, 1988 for the denial of medical care while she was detained in the Clayton County jail. The appeal is from an order enforcing a settlement agreement, which is a final order because it forecloses any additional claims. 28 U.S.C. § 1291 provides that "[t]he courts of appeals . . . shall have jurisdiction of appeals from all final decisions of the district courts of the United States." This Court has previously stated:

> In addition, we have appellate jurisdiction under 28 U.S.C. § 1291, because the order enforcing settlement agreement is a final decision. *See, e.g., Mass. Cas. Ins. Co. v. Forman*, 469 F.2d 259, 260 (5th Cir. 1972) (concluding that an order enforcing a settlement was a final judgment under § 1291 because it was "a final disposition of the primary issue then existing between the parties").

Broadnax v. Sand Lake Cancer Ctr., P.A., 819 Fed. Appx. 799, 800 (11th Cir. 2020).

A district court's order to enforce a settlement agreement is considered a final disposition subject to appeal as shown by case law.

In addition, we have appellate jurisdiction under 28 U.S.C. § 1291, because the order enforcing settlement agreement is a final decision.

Affiliati Network, Inc. v. Common Sense Beauty, LLC, 2019 U.S. App. LEXIS 23376, *1 (11th Cir. 2019).

The District Court entered its Order granting the motion to enforce settlement on August 3, 2023 (N.D. Ga. Doc. 101). Ms. Hill filed her Notice of Appeal on September 1, 2023 (N.D. Ga. Doc. 109), 29 days later, thereby complying with Fed. R. App. P. 4(a)(1)(A).

The United States District Court for the Northern District of Georgia Atlanta Division entered its Order granting the Defendants Clayton County and Victor Hill Motion to Enforce Settlement on August 3, 2023 (N. D. Ga. Doc. 101) Ms. Tiana Hill the Plaintiff, filed her Notice of Appeal on September 1, 2023 (N. D. Ga. Doc.

STATEMENT OF THE ISSUES

1. Whether the district court erred in granting standing to the defendants and former defendants on a motion to enforce settlement agreement.

2. Whether the District Court granted the Defendant's motion to enforce settlement agreement (N. D. Ga. Doc. 101).

The District Court granted the Defendant's motion to enforce settlement agreement (N. D. Ga. Doc. 101).

Ms. Tiana Hill moved the District Court to reconsider its Order granting the Defendant's motion (N. D. Ga. Doc. 102)

Ms. Tiana Hill filed her Notice of Appeal (N. D. Ga. Doc. 109).

The District Court amended its Orders dismissing CorrectHealth LLC and Dr. Charles Clopton (N.D. Ga. Docs 114 and 115).

The District Court denied Ms. Hill's Motion for Reconsideration (N.D. Ga. Doc. 116).

STATEMENT OF THE CASE

A. Procedural History

Ms. Hill sued under 42 U.S.C. §§ 1983, 1988. On December 13, 2022, she and former defendants CorrectHealth LLC and Dr. Charles Clopton mediated and entered into a Confidential Settlement Agreement (N.D. Ga. Doc. 81-2, sealed). Defendants Clayton County and Victor Hill were invited to the mediation but chose not to attend. The District Court dismissed CorrectHealth LLC and Dr. Charles Clopton with prejudice (N.D. Ga. Docs. 69 and 71). Clayton County and Victor Hill then moved to enforce the settlement (N.D. Ga. Doc. 80), and the District Court granted the motion (N.D. Ga. Doc. 101). Ms. Hill's motion for reconsideration was denied (N.D. Ga. Doc. 116). "We review a district court's order enforcing a settlement agreement for an abuse of discretion." *Hayes v. Nat'l Serv. Indus.*, 196 F.3d 1252, 1254 (11th Cir. 1990). The construction and enforceability of a settlement agreement is governed by state law. *See id.* And we review the interpretation of a settlement agreement de novo. *See Managed Care Advisory Group, LLC v. CIGNA Healthcare, Inc.*, 939 F.3d 1145, 1153 (11th Cir. 2019). *See also Resnick v. Uccello Immobilien GMBH, Inc.*, 227 F.3d 1347, 1350 (11th Cir. 2000) ("Principles governing general contract

III. Standard of Review

The Standard of review for an appeal of an order enforcing a settlement agreement is abuse of discretion.

B. Standard of Review

The standard of review for an appeal of an order enforcing a settlement agreement is abuse of discretion. "We review a district court's order enforcing a settlement agreement for an abuse of discretion." *Hayes v. Nat'l Serv. Indus.*, 196 F.3d 1252, 1254 (11th Cir. 1990). The construction and enforceability of a settlement agreement is governed by state law. *See id.* And we review the interpretation of a settlement agreement de novo. *See Managed Care Advisory Group, LLC v. CIGNA Healthcare, Inc.*, 939 F.3d 1145, 1153 (11th Cir. 2019). *See also Resnick v. Uccello Immobilien GMBH, Inc.*, 227 F.3d 1347, 1350 (11th Cir. 2000). This Court reviews the interpretation of a

Argument

I. STANDARD OF REVIEW

The Court uses the applicable state's contract law to construe and enforce settlement agreements. *Vinnett v. Gen. Elec. Co.*, 271 Fed. Appx. 908, 912 (11th Cir. 2008). *Cohen v. Dekalb Cty. Sch. Dist.*, No. 1:09-cv-1153-WSD, 2009 U.S. Dist. LEXIS 110078, at *10 (N.D. Ga. Nov. 25, 2009) .

II. DEFENDANTS CLAYTON COUNTY AND VICTOR HILL ARE NOT PARTIES TO THE CONFIDENTAIL SETTLEMENT AGREEMENT AND THEREFORE ARE WITHOUT STANDING TO BRING A MOTION TO ENFORCE THE SETTLEMENT AGREEMENT

A. The Confidential Settlement Agreement Identifies the Parties and Beneficiaries to the Agreement.

The controlling language of the Confidential Settlement Agreement expressly states in four different sections who the parties and who are the beneficiaries to the agreement.

The District Court stated in its order to enforce the settlement that "Defendants Clayton County and Victor Hill are clearly third party beneficiaries of the Settlement Agreement. In any event the former Defendants to enforce the agreement." (N.D. Ga. 101 pg. 3) The District Court's position is unsupported by the terms of the Confidential Settlement Agreement and by case law.

SUMMARY OF THE ARGUMENT

Clayton County and Victor Hill were not parties to the mediation or the settlement, and the agreement names neither as a party or beneficiary. The former defendants CorrectHealth and Dr. Charles Clopton were dismissed with prejudice, and the settlement agreement did not retain jurisdiction over the dismissed case, so those former defendants cannot bring a motion to enforce it. The District Court incorrectly interpreted the agreement, and its order enforcing the settlement should be reversed.

ARGUMENT

I. STANDARD OF REVIEW

The Court uses the applicable state's contract law to construe and enforce settlement agreements. *Vinnett v. Gen. Elec. Co.*, 271 Fed. Appx. 908, 912 (11th Cir. 2008); *Cohen v. DeKalb Cnty. Sch. Dist.*, No. 1:09-cv-1153-WSD, 2009 U.S. Dist. LEXIS 110078, at *10 (N.D. Ga. Nov. 25, 2009).

Managed Care Advisory Group, LLC v. CIGNA Healthcare, Inc., 939 F.3d 1145, 1155 (11th Cir. 2019).

herein, and it supersedes any and all prior oral or written agreements,

II. DEFENDANTS CLAYTON COUNTY AND VICTOR HILL ARE NOT PARTIES TO THE CONFIDENTIAL SETTLEMENT AGREEMENT AND THEREFORE ARE WITHOUT STANDING TO BRING A MOTION TO ENFORCE THE SETTLEMENT AGREEMENT.

commitments, or understandings with respect to such matters. **This Settlement Agreement shall be binding upon, shall inure to the benefit of, and shall be enforceable only by the parties hereto.** Except as otherwise specified by applicable law, **no other person or entity shall be deemed to have any rights under this Settlement Agreement or be entitled to bring any action to enforce any of its provisions. (N.D. Ga. Doc. 81-2 pg. 2 Sec. 1.2 Sealed).** (N.D. Ga. Doc. 81-2 pg. 5 Sec. 6 Sealed).

A. The Confidential Settlement Agreement Identifies the Parties and Beneficiaries to the Agreement

The District Court stated that "Defendants Clayton County and Victor Hill are clearly third party beneficiaries of the Settlement Agreement." (N.D. Ga. Doc. 101 at 3). The agreement says otherwise. Its opening paragraph identifies the parties:

> "This Confidential Settlement Agreement and Release ('Settlement Agreement') is entered this 13th day of December 22, 2022, between Tiana Hill individually and as mother and next friend of [minor child name redacted], her minor child ('Plaintiff') and CorrectHealth, LLC ('Defendant')." (N.D. Ga. Doc. 81-2 at 1, sealed).

The Confidential Settlement Agreement expressly states that Ms. Hill and CorrectHealth are the only parties who are the beneficiaries and who have the authority to enforce the confidential settlement agreement.

Its binding-effect clause limits enforcement to the parties:

> Defendants Clayton County and Victor hill are not a third-party beneficiaries. . . . This Settlement Agreement shall be binding upon, shall inure to the benefit of, and shall be enforceable only by the parties hereto. . . . (N.D. Ga. Doc. 81-2 at 5, sealed).

Case law provides instruction on third party beneficiaries.

"Georgia law permits third-party beneficiaries to assert claims under a contract. O.C.G.A. § 9-2-20(b) ("The beneficiary of a contract made between other parties for [*11] his benefit may maintain an action against the promisor on the contract."). **Third-party beneficiary status "depends upon the intention of the contracting parties to benefit the third party, and this intention is determined by a construction of the contract as a whole."** *Am. Fletcher Mortg. Co. v. First Am. Inv. Corp.*, 463 F. Supp. 186, 195 (N.D. Ga. 1978). Clayton County made no payment under the agreement, and any benefit it receives is incidental.

Georgia law allows a third-party beneficiary to sue on a contract. O.C.G.A. § 9-2-20. But third-party beneficiary status "depends upon the intention of the contracting parties to benefit the third party, and this intention is determined by a construction of the contract as a whole." *Am. Fletcher Mortg. Co. v. First Am. Inv.*

There was no payment made by Defendant Clayton County. There is no language in the confidential settlement agreement which says that Clayton County is a party to the agreement or beneficiary of the agreement.

The intention of the contract as a whole was for the benefit Ms. Hill and CorrectHealth LLC. Clayton County may be an incidental beneficiary, as such they have no standing to bring an action for enforcement of the confidential settlement agreement.

B. CorrectHealth Clayton LLC and Dr. Charles Clopton have been Dismissed With Prejudice and are unable to bring a motion to enforce the settlement agreement.

Former Defendants CorrectHealth Clayton LLC and Dr. Charles Clopton were dismissed by Order of the Court.

1. On January 27, 2023 Defendant Dr. Charles Clopton was dismissed by court order With Prejudice (N.D. Ga. Doc. 69). On February 2, 2023 Defendant CorrectHealth LLC was dismissed by court order With Prejudice from this action (N.D. Ga. Doc. 71).

CONCLUSION

The law that the court does not retain jurisdiction after dismissal is clear. Clayton County, Victor Hill, and the former defendants CorrectHealth and Dr. Charles Clopton do not have standing to bring a motion to enforce the settlement agreement. The District Court incorrectly interpreted the intent of the parties to the Confidential Settlement Agreement.

"We therefore find that for a district court to retain jurisdiction over a settlement agreement where the parties dismiss the case by filing a stipulation of dismissal pursuant to Rule 41(a)(1)(A)(ii), either (1) the district court must issue the order retaining jurisdiction under *Kokkonen* prior to the filing of the stipulation, or (2) the parties must condition the effectiveness of the stipulation on the district court's entry of an order retaining jurisdiction . . . ."

Anago Franchising, Inc. v. Shaz, LLC, 677 F.3d 1272, 1280 (11th Cir. 2012). The District Court therefore erred in holding that these former defendants have standing to enforce the agreement.

recovery based on the non-delivery of medical care and complies with the terms of the settlement agreement.

For the reasons stated above, Ms. Hill requests this Court reverse the District Court's Order to Enforce Settlement Agreement and to allow Ms. Hill to proceed with her claims.

For the reasons stated above Ms. Hill moves the 11th Circuit Court of Appeals to reverse the District Court's Order to Enforce Settlement Agreement and allow Ms. Hill to move forward with her recovery for her devastating injuries.

Respectfully submitted this 24th day of May 2024.

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Certificate of Compliance

CERTIFICATE OF COMPLIANCE

Pursuant to Rule 32(g) of the Federal Rules of Appellate Procedure, I certify that the foregoing **APPELLANT'S OPENING BRIEF** complies with (1) the word limit of Rule 32 (a)(7)(B) of the Federal Rules of Appellate Procedure because it contains less than 13,000 words, and (2) the typeface and type-style requirements of Rule 32(a)(5) and (6) of the Federal Rules of Appellate Procedure because it has been prepared in a proportionally spaced typeface (Times New Roman) using Microsoft Word for Microsoft 365 in 14-point font size.

Pursuant to Rule 32(g) of the Federal Rules of Appellate Procedure, I certify that the foregoing **APPELLANT'S OPENING BRIEF** complies with (1) the word limit of Rule 32(a)(7)(B) of the Federal Rules of Appellate Procedure because it contains 1,055 words, which is no more than 13,000, and (2) the typeface and type-style requirements of Rule 32(a)(5) and (6) of the Federal Rules of Appellate Procedure because it has been prepared in a proportionally spaced typeface (EB Garamond) in 14-point.

Respectfully submitted this 24th day of May 2024.

Respectfully submitted this 24th day of May 2024.

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Certificate of Service

CERTIFICATE OF SERVICE

This is to certify that I, Mitchell L. Albert III, have this day electronically filed the foregoing APPELLANT'S OPENING BRIEF with the Clerk of Court using the CM/ECF system, which will automatically send electronic notification of such filing to counsel of record who are CM/ECF participants.

This is to certify that I, Mitchell L. Albert III, have this day electronically submitted the forgoing served the APPELLANT'S OPENING BRIEF to the Clerk of Court using the CM/ECF system, which will automatically send electronic mail notification of such filing to counsel of record who are CM/ECF participants:

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Respectfully submitted this 24th day of May 2024.

Respectfully submitted this 24th day of May 2024.

/s/ Mitchell L. Albert III
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